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SUPREME COURT CASES

(2021) 20 SCC

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(BEFORE L. NAGESWARA RAO AND SANJIV KHANNA, JJ.)

M.R. VINODA

.. Appellant;

Versus

M.S. SUSHEELAMMA (DEAD) BY LEGAL
REPRESENTATIVES AND OTHERS

.. Respondents.

Civil Appeal No. 2567 of 2017[†], decided on December 13, 2021

A. Family and Personal Laws — Hindu Minority and Guardianship Act, 1956 — Ss. 6 and 8 — Joint Hindu family property in which minor had an undivided share — Right and authority of head of branch or karta to deal with vis-à-vis mother, as a natural guardian — Execution of relinquishment deed — Held, eldest male member as a head of branch or karta, was entitled to execute relinquishment deed on behalf of his branch of family — Minor's father having died, eldest brother of branch being karta, alone could have managed property on behalf of joint Hindu family branch of which he was head — Minor's mother as a natural guardian, being alive at time of execution of relinquishment deed did not have right and authority to represent and manage their branch

— *M*, son of late *C* and *P* & *G*, sons of late *N*, being eldest members of respective branches executed a partition deed dividing joint Hindu family properties inter se three branches — Validity and legality of partition deed is admitted — *R* eldest among five sons of *M* who had expired and *B*, only son of *G*, who had also expired, executed a relinquishment deed of property in question in favour of *P* — *P*-1 to *P*-4, all younger sons of late *M*, filed a suit seeking a declaration that relinquishment deed executed by their eldest brother *R*, *D*-4, and their cousin, *B*, *D*-3 in favour of their eldest uncle *P*, is null and void

— Held, a Hindu family may have different branches within it — From perspective of Hindu Law, such branches of a family are separate bodies, with eldest of that branch representing it within a larger joint Hindu family — Father and in absence of father, eldest member of branch is entitled to act as karta and in that capacity represent branch — Father or eldest member is karta of a branch of smaller joint family within larger joint Hindu family, such branch being subordinate or separate unit within larger body — In partition deed three branches of family were represented by seniormost member i.e. father as heads of respective branches — Partition is valid and binding on members/coparceners of three branches — Similarly, inter se partition amongst *D*-4 and four plaintiffs, was done by their respective representatives since they were father or eldest in their branches — Therefore, *P*-3 cannot contend that their

[†] Arising from the Judgment and Order in *M.S. Susheelamma v. M.R. Shivakumar*, 2008 SCC OnLine Kar 548 (Karnataka High Court, Regular Second Appeal No. 1989 of 2006, dt. 19-11-2008) [Affirmed]

a mother, as a natural guardian, being alive at time of execution of relinquishment deed, D-4 being eldest brother did not have right and authority to represent and manage their branch — P-3's father, having died, D-4, as eldest brother of branch being karta, alone could have managed property on behalf of joint Hindu family branch of which he was head

b — Hindu Law — Family Property, Succession and Inheritance — Karta/Manager — Alienation of Property/Legal necessity — Powers of karta/head of branch in respect of — Principles summarised — Guardian of Property/Minors and Transfer of Property — Minors — Rights of — Blending/Abandonment/Surrender/Relinquishment/Renunciation of Rights

c **B. Family and Personal Laws — Hindu Minority and Guardianship Act, 1956 — Ss. 6 and 8 — Joint Hindu family property in which minor had an undivided share — Relinquishment deed executed by karta or head of branch — Validity**

d — Relinquishment deed in question having been executed by D-4 being head of his branch of joint family was for legal necessity and for benefit of estate belonging to his branch of family — Question of a transaction being void or, for that matter, validity of relinquishment in present case, much depends on facts — Nature of transaction is required to be determined based on substance and not nomenclature of deed — Thus, in the facts and circumstances of the present case, and reason for execution of relinquishment deed, held, the same was valid

e **C. Limitation Act, 1963 — Ss. 58, 59 and 109 — Joint Hindu family property in which minor had an undivided share — Relinquishment deed executed by karta or head of branch (D-4) — Challenge to validity of relinquishment deed dt. 13-3-1969 vide suit filed on 18-11-1994 — Whether within limitation — Determination of**

f — As per Art. 109, suit would be barred by limitation as it was filed in 1994, nearly 24 yrs after relinquishment deed in question was executed and nearly 21 yrs after P-3 attained majority — For same reason, suit would be barred under Arts. 58 and 59 as it had been filed post three years from date right to sue first accrued as per Art. 58 and when facts entitling plaintiffs to have instrument or decree cancelled or set aside or contract rescinded first came to knowledge of plaintiffs as per Art. 59 — High Court rightly rejected specious and untrue plea of plaintiffs, that till two months before filing of suit, they were unaware and did not know about execution of relinquishment deed by their elder brother, D-4

g — Hindu Minority and Guardianship Act, 1956, Ss. 6 and 8

h **D. Family and Personal Laws — Hindu Law — Family Property, Succession and Inheritance — Karta/Manager — Generally — Who can be and Powers, Rights and Duties of — Branches of Hindu family — Concept of karta of each branch within larger joint Hindu family — Explained**

E. Deeds and Documents — Construction/Interpretation of Deeds and Documents — Generally — Documents are to be construed having regard to context thereof whereof labels given to them will not be of much relevance a

— Construction/Interpretation of Deeds and Documents — Particular deeds, documents and clauses — Property Deeds and Documents — Release/Relinquishment deed (Para 34)

M, son of late *C* and *P* and *G*, both sons of late *N*, being the eldest members of the respective branches executed a partition deed, Ext. P-1, dividing the joint Hindu family properties inter se the three branches. The validity and legality of the partition deed, Ext. P-1, is accepted and not under challenge. b

R, the eldest among five sons of *M* who had expired in 1967, and *B*, only son of *G*, had also expired, executed a relinquishment deed, Ext. P-2, of the property in question, in favour of *P*. c

Plaintiffs 1 to 4, all younger sons of late *M*, filed a suit seeking a declaration that the relinquishment deed, Ext. P-2, executed by their eldest brother *R*, Defendant 4, and their cousin, *B*, Defendant 3 in favour of their eldest uncle *P*, is null and void. *P*, having expired, his sons were impleaded as Defendants 1 and 2. d

The plaint states that Plaintiff 4 being minor, their eldest brother *R*, the fourth defendant, had no right to relinquish their shares. Relinquishment deed dated, Ext. P-2, being void, the property remained the joint Hindu family property and should be partitioned equally amongst them. e

The suit was resisted by Defendants 1 to 3 primarily on the ground that the relinquishment deed is valid and the suit is barred by limitation.

The trial court dismissed the suit as barred by limitation and that Defendant 4, being the eldest male member, was entitled to execute the relinquishment deed on behalf of his branch of the family. f

In the regular first appeal, the Additional Sessions Judge decreed the suit inter alia holding that Defendant 4 was not competent to execute the relinquishment deed, which being void, the suit was not barred by limitation.

The legal representatives of Defendant 1 preferred regular second appeal and succeeded by the judgment under challenge passed by the High Court inter alia ruling that the relinquishment deed is not void ab initio and the suit having been filed beyond three years as stipulated under Articles 58 and 59 of the Schedule to the Limitation Act, 1963 was barred by limitation. The prayer for the partition was rejected as the property had ceased to be a joint Hindu family property inter se the three branches. g

Aggrieved by the decision of the High Court, Plaintiff 3 has preferred present appeal in the Supreme Court.

The issues for determination before the Supreme Court were:

(1) Whether eldest male member in a joint Hindu family property in which minor had an undivided share and mother of minor was alive, was entitled to execute the relinquishment deed on behalf of his branch of the family? h

(2) Whether the relinquishment deed executed by Defendant 4 being head of his branch of joint family for legal necessity and for benefit of estate belonging to his branch of family was valid?

(3) Whether the suit filed on 18-11-1994 challenging validity of relinquishment deed dated 13-3-1969 would be barred by limitation or not?

Dismissing the appeal, the Supreme Court

Held :

A karta of a joint Hindu family can dispose of joint family property involving the undivided interest of the minor of the family therein. Therefore the proposition of appellant-Plaintiff 3 on the limitation of the power of the karta to manage and sell the joint Hindu family property on behalf of the joint family comprising of a minor is misplaced, as a coparcener has no right to interfere in the act of management of the joint family affairs. This being the position, a coparcener cannot seek an injunction restraining the karta from alienating joint Hindu family property, but has a right to challenge alienation, as the alienation is not beyond the scope of challenge by other members of the joint family, and thereby scrutiny of the court. The latter right entails the right to claim a share in the joint family estate free from unnecessary and unwanted encumbrances, whereas the former embraces the right to interfere with the act of management of the joint family affairs. (Paras 12 to 14)

Sri Narayan Bal v. Sridhar Sutar, (1996) 8 SCC 54; *Sunil Kumar v. Ram Parkash*, (1988) 2 SCC 77, followed

A Hindu family may have different branches within it. From the perspective of Hindu Law, such branches of a family are separate bodies, with the eldest of that branch representing it within a larger joint Hindu family. Father and in the absence of the father the eldest member of the branch is entitled to act as the karta and in that capacity represent the branch. (Para 15)

Bhagwan Dayal v. Reoti Devi, 1961 SCC OnLine SC 52, followed.
Mayne: *Hindu Law*, 11th Edn., at p. 347, referred to

Father or the eldest member is the karta of a branch of the smaller joint family within the larger joint Hindu family, such branch being subordinate or separate unit within the larger body. (Paras 16 and 17)

Sudarsanam Maistri v. Narasimhulu Maistri, 1901 SCC OnLine Mad 91, approved

In the present case in the partition of 1961, the three branches of the family were represented by the seniormost member i.e. father as heads of the respective branches. The partition is valid and binding on the members/coparceners of the three branches. Similarly, the inter se partition amongst Defendant 4 and four plaintiffs, was done by their respective representatives since they were the father or eldest in their branches. (Para 18)

Therefore, Plaintiff 3 cannot contend that their mother, as a natural guardian, being alive at the time of execution of the relinquishment deed, Defendant 4 being the eldest brother did not have the right and authority to represent and manage their branch. Plaintiff 3's father, having died in 1967, Defendant 4, as the eldest brother of the branch being the karta, alone could have managed the property on behalf of the joint Hindu family branch of which he was the head. (Paras 19 to 21)

M. Arumugam v. Ammaniammal, (2020) 11 SCC 103 : (2021) 1 SCC (Civ) 475, clarified and harmonised

A karta can alienate the property when other coparceners have given consent. It is also settled that a karta may alienate the joint family property for value, either for legal necessity or for the benefit of the estate, to bind the interests of all the undivided members of the family, whether they are adults or minors or widows. There are no specific grounds to prove the existence of legal necessity, and it must therefore depend on the facts of each case. A karta has wide discretion in the decision over the existence of legal necessity and as to in what way such legal necessity can be fulfilled. However, this exercise of power and rights by karta is not beyond challenge on the limited ground of lack of existence of legal necessity or absence of benefit to the estate. (Paras 22 to 25)

Thamma Venkata Subbamma v. Thamma Rattamma, (1987) 3 SCC 294, distinguished on facts *Mayne's Treatise on Hindu Law and Usage*, 11th Edn., Article 382; *Mayne's Treatise on Hindu Law and Usage*, 17th Edn., Article 385; *Mulla's Hindu Law*, 22nd Edn., Articles 223, 224, 242-A at pp. 332, 333, referred to

In the present case, the partition deed, Ext. P-1, states that owing to lack of harmony in the family members, the members had decided to separate from the joint Hindu family status. The joint Hindu properties were divided amongst the three groups represented by the three brothers. The partition deed, Ext. P-1, acknowledges that during the joint family status, "all properties" were mortgaged to one S for Rs 32,000, which outstanding loan amount stood ascertained. The loan would be paid by G to the extent of approximately 10 annas and by M to the extent of approximately 6 annas, whereas P had no responsibility. (Para 27)

It is an accepted position that the repayments were made, and the joint Hindu family properties mortgaged were freed shortly before the execution of the relinquishment deed Ext. P-2. (Para 28)

From the evidence on record, it is apparent, P had paid the larger share in the redemption of the mortgage and had managed the legal proceedings in the redemption suit. The repayment so made by P served the interest for the entire family since, and as recorded in the partition deed dated 15-4-1961, "all properties" of the family were mortgaged. Thus, the relinquishment made by R and B in favour of P was on account of the repayment of the debt made by P, on basis of an understanding between the three branches vide the partition deed 15-4-1961, Ext. P-1. The relinquishment made by R, as the eldest of the family, enured benefit for all the members of that branch as it settled accounts inter se three branches of the family. Since there was a legal necessity to settle the account with P who had made significant payments to redeem the properties that had fallen in the share of R branch, R was entitled to relinquish the share in the property in such exercise of his managerial power. The relinquishment deed, Ext. P-2, having been executed by Defendant 4 being the head of his branch of the joint family was for legal necessity and for the benefit of the estate belonging to his branch of the family. (Paras 26 and 33)

Kehar Singh v. Nachittar Kaur, (2018) 14 SCC 445, followed

a The question of a transaction being void or, for that matter, the validity of the relinquishment in present case, much depends on the facts. It is an inquiry into the determination of relevant facts brought onto the record for the perusal of the court. The nature of transaction is required to be determined based on the substance and not the nomenclature of the deed. (Para 34)

b The documents are to be construed having regard to the context thereof whereof labels given to them will not be of much relevance. In the light of the factual position of the present case, it cannot be said that the relinquishment deed, even if there be a debate as to the legal necessity or lack of benefit, can be declared and treated as null and void. (Para 34)

The validity of the relinquishment deed dated 13-3-1969, Ext. P-2, was challenged vide the suit filed on 18-11-1994. (Para 36)

c Applying Article 109 of the Limitation Act, 1963, the suit would be barred by limitation as it was filed in 1994, nearly 24 years after the relinquishment deed (Ext. P-2) was executed to Defendant 4 in favour of P branch and nearly 21 years after Plaintiff 3 attained majority in 1973. For the same reason, the suit would be barred under Articles 58 and 59 of the Limitation Act as it had been filed post three years from the date the right to sue first accrued as per Article 58 and when the facts entitling the plaintiffs to have the instrument or decree cancelled or set aside or the contract rescinded first came to the knowledge of the plaintiffs as per Article 59. The High Court rightly rejected the specious and untrue plea of the plaintiffs that till two months before the filing of the suit, they were unaware and did not know about execution of the relinquishment deed by their elder brother, Defendant 4. (Paras 37 and 38)

e For the aforesaid reasons appeal is dismissed, and the judgment of the High Court dismissing the suit as barred by limitation is upheld. (Para 39)

M.S. Susheelamma v. M.R. Shivakumar, 2008 SCC OnLine Kar 548, *affirmed*

RM-D/68377/SV

Advocates who appeared in this case :

f Ms K.V. Bharathi Upadhyaya (Advocate-on-Record), Advocate, for the Appellant;
E.C. Vidya Sagar (Advocate-on-Record), Aftab Ali Khan (Advocate-on-Record) and
Rajesh Mahale (Advocate-on-Record), Advocates, for the Respondents.

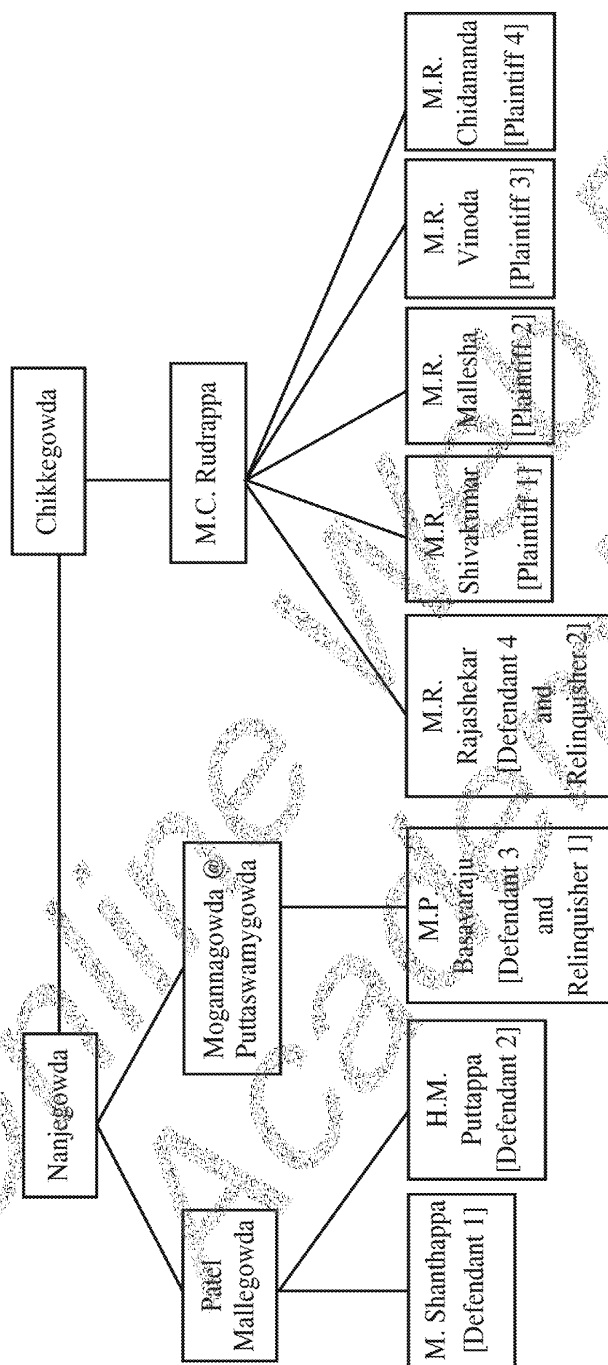
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2. (2018) 14 SCC 445, *Kehar Singh v. Nachittar Kaur* 195a
- g 3. 2008 SCC OnLine Kar 548, *M.S. Susheelamma v. M.R. Shivakumar* 187f-g, 199e
4. (1996) 8 SCC 54, *Sri Narayan Bal v. Sridhar Sutar* 188c-d, 190c, 192g-h
5. (1988) 2 SCC 77, *Sunil Kumar v. Ram Parkash* 190f
6. (1987) 3 SCC 294, *Thamma Venkata Subbamma v. Thamma Rattamma* 193d, 194a, 194d
7. 1961 SCC OnLine SC 52, *Bhagwan Dayal v. Reoti Devi* 191b
- h 8. 1901 SCC OnLine Mad 91, *Sudarsanam Maistri v. Narasimhulu Maistri* 191g

The Judgment of the Court was delivered by

SANJIV KHANNA, J.— For convenience, we begin by reproducing the genealogy table as it stood at the time of filing the suit from which the present appeal arises:



a 2. We would refer to the parties before us as per the above table, albeit acknowledge many of the aforesaid parties having expired are represented by their legal representatives.

b 3. On 15-4-1961, M.C. Rudrappa, son of late Chikkegowda and Patel Mallegowda and Mogannagowda alias Puttaswamygowda, both sons of late Nanjegowda, being the eldest members of the respective branches executed a partition deed, marked Ext. P-1, dividing the joint Hindu family properties inter se the three branches. The validity and legality of the partition deed, Ext. P-1, is accepted and not under challenge.

c 4. On 13-3-1969, M.R. Rajashekar, the eldest among five sons of M.C. Rudrappa who had expired in 1967, and M.P. Basavaraju, only son of Mogannagowda alias Puttaswamygowda, who it appears had also expired, executed a relinquishment deed, marked Ext. P-2, of the property admeasuring 6 acres 34 guntas in Survey No. 29, Madenahalli Village (the suit property), in favour of Patel Mallegowda.

d 5. On 18-11-1994, M.R. Shivakumar (Plaintiff 1), M.R. Mallesha (Plaintiff 2), M.R. Vinoda (Plaintiff 3) and M.R. Chidananda (Plaintiff 4), all younger sons of late M.C. Rudrappa, filed a suit seeking a declaration that the relinquishment deed dated 13-3-1969, Ext. P-2, executed by their eldest brother M.R. Rajashekar, Defendant 4, and their cousin, M.P. Basavaraju, Defendant 3 in favour of their eldest uncle Patel Mallegowda, is null and void. Patel Mallegowda, having expired, his sons M. Shantappa and H. M. Puttappa were impleaded as Defendants 1 and 2.

e 6. The plaint, in a nutshell, states that Plaintiff 4 being minor on 13-3-1969, their eldest brother M.R. Rajashekar, the fourth defendant, had no right to relinquish their shares.¹ The relinquishment deed dated 13-3-1969, Ext. P-2, being void, the property remained the joint Hindu family property and should be partitioned equally amongst them.

7. The suit was resisted by Defendants 1 to 3 primarily on the ground that the relinquishment deed is valid and the suit is barred by limitation.

8. The trial court dismissed the suit as barred by limitation and that Defendant 4, being the eldest male member, was entitled to execute the relinquishment deed on behalf of his branch of the family.

f 9. In the regular first appeal, the Additional Sessions Judge decreed the suit inter alia holding that Defendant 4 was not competent to execute the relinquishment deed, which being void, the suit was not barred by limitation.

g 10. Legal representatives of Defendant 1 preferred Regular Second Appeal No. 1989 of 2006 and have succeeded by the judgment² under challenge passed by the High Court of Karnataka at Bangalore on 19-11-2008 inter alia ruling that the relinquishment deed is not void ab initio and the suit having been filed beyond three years as stipulated under Articles 58 and 59 of the Schedule to the

h ¹ As per the plaint, all the plaintiffs had attained majority at the time of execution of the relinquishment deed except Plaintiff 4. It is observed that there is some discrepancy with regard to the year of birth of four plaintiffs. However, in the context of the present judgment this would not make any difference.

² *M.S. Susheelamma v. M.R. Shivakumar*, 2008 SCC OnLine Kar 548

Limitation Act, 1963 was barred by limitation. The prayer for the partition was rejected as the property had ceased to be a joint Hindu family property inter se the three branches.

11. Aggrieved by the decision, Plaintiff 3 has preferred this appeal. Plaintiff 1, who is represented by his legal representative, Plaintiffs 2 and 4, having not preferred this appeal are the pro forma Respondents 8, 9 and 10. Defendant 1, represented by his legal representatives are Respondents 1 to 4, and Defendant 2 represented by his legal representative is Respondent 5, and Defendant 4 is Respondent 7 in the present appeal. Defendant 3, Respondent 6 herein has been deleted from the array of parties.

12. Before we examine the question of the validity of the relinquishment deed, we must define the right and authority of the head of the branch or the karta to deal with a joint Hindu family property as Plaintiff 4, a coparcener in the joint family, it is admitted³ was minor when the fourth defendant executed Ext. P-2, the relinquishment deed on 13-3-1969.

13. The position in Hindu Law is well settled. In *Sri Narayan Bal v. Sridhar Sutar*⁴ this Court interpreting Sections 6⁵ and 8⁶ of the Hindu Minority and

³ The appellant in his special leave petition, Ground (DD) states that the appellant was minor at the time of execution of the relinquishment deed. Even the rejoinder affidavit vide Para 11, the appellant states that he was not major at the time of execution of relinquishment deed. However, see Note 1.

⁴ (1996) 8 SCC 54

⁵ **“6. Natural guardians of a Hindu minor.**—The natural guardians of a Hindu minor, in respect of the minor’s person as well as in respect of the minor’s property (excluding his or her undivided interest in joint family property), are—

(a) in the case of a boy or an unmarried girl—the father, and after him, the mother:

Provided that the custody of a minor who has not completed the age of five years shall ordinarily be with the mother;

(b) in the case of an illegitimate boy or an illegitimate unmarried girl—the mother, and after her, the father:

(c) in the case of a married girl—the husband:

Provided that no person shall be entitled to act as the natural guardian of a minor under the provisions of this section—

(a) if he has ceased to be a Hindu, or

(b) if he has completely and finally renounced the world by becoming a hermit (*vanaprastha*) or an ascetic (*yati* or *sanyasi*).

Explanation.—In this section, the expressions “father” and “mother” do not include a stepfather and a stepmother.”

⁶ **“8. Powers of natural guardian.**—(1) The natural guardian of a Hindu minor has power, subject to the provisions of this section, to do all acts which are necessary or reasonable and proper for the benefit of the minor or for the realisation, protection or benefit of the minor’s estate; but the guardian can in no case bind the minor by a personal covenant.

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Guardianship Act, 1956 (“the HMG Act” for short), has held that these two sections are not to be viewed in isolation, albeit in harmony and conjunction,
a and when read together the intent is manifest that the HMG Act does not envisage a natural guardian of an undivided interest of a Hindu minor in a joint Hindu family property. A natural guardian of a Hindu minor in respect of the individual property alone is contemplated under Section 8, whereunder the powers and duties of a natural guardian are defined. The provisions of the
b HMG Act with the object of saving the minor’s separate individual interest from being misappropriated require a natural guardian to seek permission from the Court before alienating any part of the minor’s estate, do not affect the right of the karta or the head of the branch to manage and from dealing with the joint

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(footnote 6 *contd.*)

(2) The natural guardian shall not, without the previous permission of the court—

(a) mortgage or charge, or transfer by sale, gift, exchange or otherwise, any part of the immovable property of the minor, or

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(b) lease any part of such property for a term exceeding five years or for a term extending more than one year beyond the date on which the minor will attain majority.

(3) Any disposal of immovable property by a natural guardian, in contravention of sub-section (1) or sub-section (2), is voidable at the instance of the minor or any person claiming under him.

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(4) No court shall grant permission to the natural guardian to do any of the acts mentioned in sub-section (2) except in case of necessity or for an evident advantage to the minor.

(5) The Guardians and Wards Act, 1890, shall apply to and in respect of an application for obtaining the permission of the court under sub-section (2) in all respects as if it were an application for obtaining the permission of the court under Section 29 of that Act, and in particular—

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(a) proceedings in connection with the application shall be deemed to be proceedings under that Act within the meaning of Section 4-A thereof;

(b) the court shall observe the procedure and have the power specified in sub-sections (2), (3) and (4) of Section 31 of that Act; and

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(c) an appeal shall lie from an order of the court refusing permission to the natural guardian to do any of the acts mentioned in sub-section (2) of this section to the court to which appeals ordinarily lie from the decisions of that court.

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(6) In this section “court” means the city civil court or a district court or a court empowered under Section 4-A of the Guardians and Wards Act, 1890, within the local limits of whose jurisdiction the immovable property in respect of which the application is made is situate, and where the immovable property is situate within the jurisdiction of more than one such court, means the court within the local limits of whose jurisdiction any portion of the property is situate.”

Hindu family property. In terms of Section 12⁷, ordinarily no guardian shall be appointed for minor's interest in joint Hindu family. Only when there is no adult member in the management of the joint family property in which the minor has an undivided interest—and then alone—a guardian may be appointed. Further, the adult family member in the management of the joint family property may be a male or female, not necessarily the karta. Therefore, Section 8 of the HMG Act that requires a guardian of a Hindu minor to seek the permission of the Court before he disposes of any immovable property of the minor will have no application when a karta or adult head of the family alienates joint Hindu property even if one or more coparceners are minor. The reason is that Section 8, in view of the express terms of Sections 6 and 12, would not apply where a joint Hindu family property is sold/disposed of by the karta or head of the family even when a minor has an undivided interest in the said joint Hindu family property. *Sri Narayan Bal*⁴ observes: (SCC pp. 56-57, para 5)

“5. With regard to the undivided interest of the Hindu minor in joint family property, the provisions afore-culled are beads of the same string and need to be viewed in a single glimpse, simultaneously in conjunction with each other. Each provision, and in particular Section 8, cannot be viewed in isolation. ... The joint Hindu family by itself is a legal entity capable of acting through its *karta* and other adult members of the family in management of the joint Hindu family property. Thus Section 8 in view of the express terms of Sections 6 and 12, would not be applicable where a joint Hindu family property is sold/disposed of by the karta involving an undivided interest of the minor in the said joint Hindu family property.”

14. Thus, a karta of a joint Hindu family can dispose of joint family property involving the undivided interest of the minor of the family therein. Therefore the proposition of appellant-Plaintiff 3 on the limitation of the power of the karta to manage and sell the joint Hindu family property on behalf of the joint family comprising of a minor is misplaced, as a coparcener has no right to interfere in the act of management of the joint family affairs.⁸ This being the position, a coparcener cannot seek an injunction restraining the karta from alienating joint Hindu family property, but has a right to challenge alienation, as the alienation is not beyond the scope of challenge by other members of the joint family, and thereby scrutiny of the court. The latter right entails the right to claim a share in the joint family estate free from unnecessary and unwanted

7 “12. **Guardian not to be appointed for minor's undivided interest in joint family property.**—Where a minor has an undivided interest in joint family property and the property is under the management of an adult member of the family, no guardian shall be appointed for the minor in respect of such undivided interest:

Provided that nothing in this section shall be deemed to affect the jurisdiction of a High Court to appoint a guardian in respect of such interest.”

4 *Sri Narayan Bal v. Sridhar Sutar*, (1996) 8 SCC 54

8 *Sunil Kumar v. Ram Parkash*, (1988) 2 SCC 77

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a encumbrances, whereas the former embraces the right to interfere with the act of management of the joint family affairs. We shall subsequently examine the grounds and circumstances in which alienation can be challenged.

b 15. A Hindu family may have different branches within it. From the perspective of Hindu Law, such branches of a family are separate bodies, with the eldest of that branch representing it within a larger joint Hindu family. Father and in the absence of the father the eldest member of the branch is entitled to act as the karta and in that capacity represent the branch. In *Bhagwan Dayal v. Reoti Devi*⁹, this Court decoded the law as: (AIR p. 304, para 47)

“47. In *Mayne’s Hindu Law*, 11th Edn., the legal position has been neatly stated thus at p. 347:

c ‘281 A. So long as a family remains an undivided family, two or more members of it, whether they be members of different branches or of one and the same branch of the family, can have no legal existence as a separate independent unit; but all the members of a branch, or of a sub-branch, can form a distinct and separate corporate unit within the larger corporate family and hold property as such. Such property will be joint family property of the members of the branch inter se, but will be separate property of that branch in relation to the larger family.

d 282. *Joint tenancy unknown to Hindu law.*—The principle of joint tenancy is unknown to Hindu law except in the case of the joint property of an undivided Hindu family governed by the Mitakshara law.’

e The legal position may be stated thus: Coparcenary is a creature of Hindu law and cannot be created by agreement of parties except in the case of reunion. It is a corporate body or a family unit. *The law also recognizes a branch of the family as a subordinate corporate body. The said family unit, whether the larger one or the subordinate one, can acquire, hold and dispose of family property subject to the limitations laid down by law.* Ordinarily, the manager, or by consent, express or implied of the members of the family, any other member or members can carry on business or acquire property, subject to the limitations laid down by the said law, for or on behalf of the family. Such business or property would be the business or property of the family.” (emphasis supplied)

f 16. In 1901, the High Court of Madras in *Sudarsanam Maistri v. Narasimhulu Maistri*¹⁰ had observed as follows: (SCC OnLine Mad)

g “... But so long as a family remains an undivided unit, two or more members thereof — whether they be members of different branches or of one and the same branch of the family,—can have no legal existence as a separate independent unit; but if they comprise all the members of a branch, or of a sub-branch, they can form a distinct and separate corporate unit

h 9 1961 SCC OnLine SC 52 : (1962) 3 SCR 440 : AIR 1962 SC 287
10 1901 SCC OnLine Mad 91

within the larger corporate unit and hold property as such, Such property may be the self-acquisition or “obstructed heritage” of a paternal ancestor of that branch, as distinguished from the other branches which property has come to that branch and that branch alone as “unobstructed heritage” or it may be the self-acquisition of one or more individual members of that branch, which by act of parties has been impressed with the character of joint property, owned by that branch and that branch alone, to the exclusion of the other branches.”

17. In the light of the above position, the father or the eldest member is the karta of a branch of the smaller joint family within the larger joint Hindu family, such branch being subordinate or separate unit within the larger body.

18. In the partition of 1961, the three branches of the family were represented by the seniormost member i.e. father as heads of the respective branches, namely, Patel Mallegowda, Mogannagowda alias Puttaswamygowda and M.C. Rudrappa. The partition is valid and binding on the members/coparceners of the three branches. Similarly, the inter se partition amongst Defendant 4 i.e. M.R. Rajashekar and four plaintiffs, was done by their respective representatives since they were the father or eldest in their branches.

19. At this stage, we may refer to a recent decision of this Court in *M. Arumugam v. Ammaniammal*¹¹ wherein after referring to Section 6 of the Succession Act, 1956, it was observed as under: (SCC p. 112, para 19)

“19. A karta is the manager of the joint family property. He is not the guardian of the minor members of the joint family. What Section 6 of the Act provides is that the natural guardian of a minor Hindu shall be his guardian for all intents and purposes except so far as the undivided interest of the minor in the joint family property is concerned. This would mean that the natural guardian cannot dispose of the share of the minor in the joint family property. The reason is that the karta of the joint family property is the manager of the property. However, this principle would not apply when a family settlement is taking place between the members of the joint family. When such dissolution takes place and some of the members relinquish their share in favour of the karta, it is obvious that the karta cannot act as the guardian of that minor whose share is being relinquished in favour of the karta. There would be a conflict of interest. In such an eventuality it would be the mother alone who would be the natural guardian and, therefore, the document executed by her cannot be said to be a void document. At best, it was a voidable document in terms of Section 8 of the Act and should have been challenged within three years of the plaintiff attaining majority.”

20. In our view this judgment in *M. Arumugam*¹¹ does not lay down a different law, and is not contra the ratio in *Sri Narayan Bal*⁴. In *M. Arumugam*¹¹, the Court was dealing with the situation governed by pre-amended Section 6 of the Hindu Succession Act, which postulates deemed partition on the death

¹¹ (2020) 11 SCC 103 : (2021) 1 SCC (Civ) 475

⁴ *Sri Narayan Bal v. Sridhar Sutar*, (1996) 8 SCC 54

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a of a coparcener. Under the Hindu Succession Act, inheritance to the estate of the deceased coparcener on a deemed partition is by way of succession, and not by way of survivorship. Therefore, the property inherited is individual and not joint Hindu family property. Consequent to which the plaintiff therein, who was a minor, had inherited the share on her father's death, who was a karta. The inherited property belonged to the minor. In this context, the Court held that the mother alone would be the natural guardian, and the relinquishment made by her on behalf of her minor daughter i.e. the plaintiff therein, would not be void.

b **21.** In the light of the aforementioned proposition of law, Plaintiff 3 cannot argue that their mother, as a natural guardian, being alive at the time of execution of the relinquishment deed, Defendant 4 being the eldest brother did not have the right and authority to represent and manage their branch. Plaintiff 3's father, having died in 1967, Defendant 4, as the eldest brother of the branch being the karta, alone could have managed the property on behalf of the joint Hindu family branch of which he was the head.

c **22.** The second question for consideration is whether as a karta or the head of the branch, M.R. Rajashekar i.e. Defendant 4, could have validly executed the relinquishment deed, marked Ext. P-2, on behalf of his branch? The answer to this issue is well settled, and for that reference is to be made to *Thamma Venkata Subbamma v. Thamma Rattamma*¹² which decision refers to the legal position in the Hindu Law in great depth and detail. After advertng to *Mayne's Treatise on Hindu Law and Usage*, 11th Edn., Article 382¹³ and *Mulla's Hindu Law*, 15th Edn., Article 258,¹⁴ it has been held thus: (SCC p. 301, para 17)

d “17. It is, however, a settled law that a coparcener can make a gift of his undivided interest in the coparcenary property to another coparcener or e to a stranger with the prior consent of all other coparceners. Such a gift would be quite legal and valid.”

f ¹² (1987) 3 SCC 294

¹³ Relevant part of the *Mayne's Treatise on Hindu Law and Usage*, 11th Edn., Article 382 reads:

g “382. *Gift invalid.*—It is now equally well settled in all the Provinces that a gift or devise by a coparcener in a Mitakshara family of his undivided interest is wholly invalid. ... A coparcener cannot make a gift of his undivided interest in the family property, movable or immovable, either to a stranger or to a relative except for purposes warranted by special texts.”

h ¹⁴ Relevant part of the *Mulla's Hindu Law*, 15th Edn., Article 258 reads as:

“258. *Gift of undivided interest.*—(1) According to the Mitakshara law as applied in all the States, no coparcener can dispose of his undivided interest in coparcenary property by gift. Such transaction being void altogether there is no estoppel or other kind of personal bar which precludes the donor from asserting his right to recover the transferred property. He may, however, make a gift of his interest with the consent of the other coparceners.”

23. This judgment in *Thamma Venkata Subbamma*¹² draws a distinction between gifts and relinquishment by a coparcener of his share; and the head of the branch or karta as the representative or eldest member of the branch. Former is valid and legal, provided the relinquishment is in favour of all other coparceners. The gift or relinquishment would also be valid if it is with the prior consent of another coparcener. Equally, a coparcener may make a gift of his undivided interest in the coparcenary property to another coparcenary with the prior consent of other coparceners.

24. *Mulla's Hindu Law*, 22nd Edn. vide Article 262, states that a coparcener may renounce his interest in favour of the other coparceners as a body, but not in favour of one or more of them. When he renounces in favour of one or more of them, the renunciation enures for the benefit of all other coparceners and not for the sole benefit of the coparcener or coparceners in whose favour the renunciation is made. A similar exposition vide Article 407 in *Mayne's Treatise on Hindu Law and Usage*, 17th Edn., states that a gift by a coparcener of his entire undivided interest in favour of the other coparcener or coparceners is valid whether it is regarded as one made with the consent of the other or others or as a renunciation of his interest in favour of all. Referring to the judgment in *Thamma Venkata Subbamma*¹², *Mayne's Treatise on Hindu Law and Usage* observes that renunciation in the form of ostensible gift may have the effect of relinquishment and if it enures for the benefit of all the coparceners, such gift would be construed as valid. In addition, *Mulla's Hindu Law*, 22nd Edn. recognises that a father or other managing member of the ancestral immovable property can make gifts within reasonable limits for "pious purposes".¹⁵

25. Read in this light, it can be validly argued that the relinquishment deed dated 13-3-1969, Ext. P-2, executed by the fourth defendant would be invalid. However, in the present case, other aspects have to be noticed to decide the relinquishment deed's validity. First, we must again refer to the superior power that the karta enjoys and, consequently, his greater rights and duties than other members. A karta can alienate the property when other coparceners have given consent. It is also settled that a karta may alienate the joint family property for value, either for legal necessity or for the benefit of the estate, to bind the interests of all the undivided members of the family, whether they are adults or minors or widows.¹⁶ There are no specific grounds to prove the existence of legal necessity, and it must therefore depend on the facts of each case. A karta has wide discretion in the decision over the existence of legal necessity and as to in what way such legal necessity can be fulfilled.¹⁷ However, it is observed this exercise of power and rights by karta is not beyond challenge on the limited ground of lack of existence of legal necessity or absence of benefit to the estate.

¹² *Thamma Venkata Subbamma v. Thamma Rattamma*, (1987) 3 SCC 294

¹⁵ See Articles 223 and 224 at pp. 332 and 333, *Mulla's Hindu Law*, 22nd Edn.

¹⁶ *Mayne's Treatise on Hindu Law and Usage*, 17th Edn., Article 385.

¹⁷ *Mulla's Hindu Law*, 22nd Edn., Article 242-A.

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26. This Court in *Kehar Singh v. Nachittar Kaur*¹⁸ analysing the concept of legal necessity had relied on *Mulla's Hindu Law* to observe: (SCC pp. 449-51, paras 20-21 & 26)

“20. Mulla in his classic work *Hindu Law* while dealing with the right of a father to alienate any ancestral property said in Article 254, which reads as under:

‘Article 254

254. *Alienation by father.*—A Hindu father as such has special powers of alienating coparcenary property, which no other coparcener has. In the exercise of these powers he may:

(1) make a gift of ancestral movable property to the extent mentioned in Article 223, and even of ancestral immovable property to the extent mentioned in Article 224;

(2) sell or mortgage ancestral property, whether movable or immovable, including the interest of his sons, grandsons and great-grandsons therein, for the payment of his own debt, provided the debt was an antecedent debt, and was not incurred for immoral or illegal purposes (Article 294).’

21. What is legal necessity was also succinctly said by Mulla in Article 241, which reads as under:

‘Article 241

241. *What is legal necessity.*—The following have been held to be family necessities within the meaning of Article 240:

(a) payment of government revenue and of debts which are payable out of the family property;

(b) maintenance of coparceners and of the members of their families;

(c) marriage expenses of male coparceners, and of the daughters of coparceners;

(d) performance of the necessary funeral or family ceremonies;

(e) costs of necessary litigation in recovering or preserving the estate;

(f) costs of defending the head of the joint family or any other member against a serious criminal charge;

(g) payment of debts incurred for family business or other necessary purpose. In the case of a manager other than a father, it is not enough to show merely that the debt is a pre-existing debt;’

The above are not the only indices for concluding as to whether the alienation was indeed for legal necessity, nor can the enumeration of criterion for establishing legal necessity be copious or even predictable. It

must therefore depend on the facts of each case. When, therefore, property is sold in order to fulfil tax obligations incurred by a family business, such alienation can be classified as constituting legal necessity.

(See *Hindu Law* by Mulla, 22nd Edn.)

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26. Once the factum of existence of legal necessity stood proved, then, in our view, no co-coparcener (son) has a right to challenge the sale made by the karta of his family. The plaintiff being a son was one of the co-coparceners along with his father Pritam Singh. He had no right to challenge such sale in the light of findings of legal necessity being recorded against him. It was more so when the plaintiff failed to prove by any evidence that there was no legal necessity for sale of the suit land or that the evidence adduced by the defendants to prove the factum of existence of legal necessity was either insufficient or irrelevant or no evidence at all.”

27. In the present case, the partition deed, Ext. P-1, states that owing to lack of harmony in the family members, the members had decided to separate from the joint Hindu family status. The joint Hindu properties were divided amongst the three groups represented by the three brothers, Patel Mallegowda, Mogannagowda alias Puttaswamygowda and M.C. Rudrappa. The partition deed, Ext. P-1, acknowledges that during the joint family status, “all properties” were mortgaged to one Suranashetty for Rs 32,000, which outstanding loan amount stood ascertained. The loan would be paid by Mallegowda to the extent of approximately 10 annas and by M.C. Rudrappa to the extent of approximately 6 annas, whereas Mogannagowda had no responsibility.

28. It is an accepted position that the repayments were made, and the joint Hindu family properties mortgaged were freed shortly before the execution of the relinquishment deed on 13-3-1969, Ext. P-2. We would now refer to the evidence and material on record to show the circumstances and reason for the execution of the relinquishment deed on 13-3-1969, Ext. P-2.

29. The trial court judgment refers to the cross-examination of M.R. Vinoda, PW 1, who affirmed that when the joint Hindu properties were partitioned in 1961, Patel Mallegowda had retained the property in his share. Further as Patel Mallegowda had got the property when the partition took place in 1961, after his death the same came to the share of his son Shantappa i.e. Defendant 1 in the suit. The court of regular first appeal appraised the evidence of Shanthappa (DW 1) on repayment of the loan to Suranashetty. As per DW 1, his father, Patel Mallegowda, had filed a suit before the Mysore Court for the redemption of mortgage, which was compromised for Rs 33,000. Patel Mallegowda had paid Rs 25,000 and Rs 8000 was paid by M.C. Rudrappa to redeem the mortgage.¹⁹ Thus, Patel Mallegowda had paid substantial amount, much more than the stipulation in the partition deed (Ext. P-1).

¹⁹ During the arguments before the trial court, Defendants 1 and 3 have argued that Patel Mallegowda looked after the court proceedings for redemption. Further, it was argued that whoever looked after the court affairs was to be given the suit land.

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30. Defendants ²⁰ and 3 in their examination-in-chief accepted that at the time of partition in 1961, a suit was pending regarding the loan taken from Suranashetty, which was later decided in the Mysore Court. Further, the plaintiffs did not have any right over the suit property because the same belonged to those who borne the court expenses for the redemption suit. To repay the amount, Defendant 1's father, Patel Mallegowda, had paid the entire expense, except for Rs 8,000 that was paid by M.C. Rudrappa. Thereafter to clarify the position and doubts the relinquishment deed, Ext. P-2, was executed in 1969.

31. The trial court also relied upon Ext. D-2, the record of rights, which mentions that M.R. No. 1: 62-63, the mortgage was released in 1968 and Patel Mallegowda, father of M. Shanthappa, had got the rights in the property since 1962-1963 itself. In Ext. D-3, Index of lands, in Column 18, it is mentioned that Patel Mallegowda and Mogannagowda, son of Nanjegowda, had got the property released from Suranashetty, and the rights were redeemed in favour of Patel Mallegowda as per the terms agreed between them. The trial court, on further perusal of the said documents, in Exts. D-2 and D-3, the mortgage release letters, observed that the property had come to the share of Patel Mallegowda.

32. The relinquishment deed, Ext. P-2, states that M.P. Basavaraju and M.R. Rajashekar were paid Rs 1000 for leaving any right or interest to which they had consented and accepted, and that even before the relinquishment, they and their family had no right or interest in the suit property. The relinquishment deed, Ext. P-2, was an acknowledgment of the rights and interest of the Patel Mallegowda branch.

33. From the evidence on record, it is apparent, Patel Mallegowda had paid the larger share in the redemption of the mortgage and had managed the legal proceedings in the redemption suit. The repayment so made by Patel Mallegowda served the interest for the entire family since, and as recorded in the partition deed dated 15-4-1961, "all properties" of the family were mortgaged. Thus, the relinquishment made by M.R. Rajashekar and M.P. Basavaraju in favour of Patel Mallegowda was on account of the repayment of the debt made by Patel Mallegowda, on basis of an understanding between the three branches vide the partition deed 15-4-1961, Ext. P-1. The relinquishment made by M.R. Rajashekar, as the eldest of the family, enured benefit for all the members of that branch as it settled accounts inter se three branches of the family. Since there was a legal necessity to settle the account with Patel Mallegowda who had made significant payments to redeem the properties that had fallen in the share of M.R. Rajashekar branch, M.R. Rajashekar was entitled to relinquish the share in the property in such exercise of his managerial power. The relinquishment deed dated 13-3-1969, Ext. P-2, having been executed by

²⁰ Although Defendant 2 i.e. H.M. Puttappa, corroborated the plaintiff's contentions before the court of first regular appeal, it will bear no consequences on his statement before the trial court and hence, no ramifications for the present appeal.

the fourth defendant being the head of his branch of the joint family was for legal necessity and for the benefit of the estate belonging to his branch of the family.

34. The question of a transaction being void or, for that matter, the validity of the relinquishment in this case, much depends on the facts. It is an inquiry into the determination of relevant facts brought onto the record for the perusal of the court. The nature of transaction is required to be determined based on the substance and not the nomenclature of the deed. Documents are to be construed having regard to the context thereof whereof labels given to them will not be of much relevance. In the light of the factual position of this case as discussed above, we do not think that the relinquishment deed, even if there be a debate as to the legal necessity or lack of benefit, can be declared and treated as null and void.

35. The plaintiffs, including the present appellant, in the plaint, did not predicate their case on the ground of inheritance of the share on the death of their father, M.C. Rudrappa in 1967. Plaintiff 3 has not raised the plea of deemed partition in the present appeal. Even otherwise, we would not allow Plaintiff 3 to raise this contention before us for the first time, as it would deprive and deny the contesting defendants from raising defences founded on facts in nature of estoppel, acquiescence and right to restitution; apart from the plea that the suit is barred by limitation, which aspect has been considered below.

36. This brings us to the question of limitation. The validity of the relinquishment deed dated 13-3-1969, Ext. P-2, was challenged vide the suit filed on 18-11-1994.

37. On the said aspect we would like to reproduce and refer to Articles 58, 59, 60 and 109 of the Schedule to the Limitation Act, which read:

<i>"Description of suit"</i>	<i>Period of limitation</i>	<i>Time from which period begins to run</i>
58. To obtain any other declaration.	Three years	When the right to sue first accrues.
59. To cancel or set aside an instrument or decree or, for the rescission of a contract.	Three years	When the facts entitling the plaintiff to have the instrument or decree cancelled or set aside or the contract rescinded first become known to him.
60. To set aside a transfer of property made by the guardian of a ward— (a) by the ward who has attained majority; (b) by the ward's legal representative— (c) when the ward dies within three years from the date of attaining majority;	Three years Three years	When the ward attains majority. When the ward attains majority.

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a	(ii) when the ward dies before attaining majority. *	Three years *	When the ward dies. *
b	109. By a Hindu governed by Mitakshara law to set aside his father's alienation of ancestral property.	Twelve years	When the alienee takes possession of the property."

38. In our opinion, Article 60 would not apply as this is not a case of transfer of property made by a guardian of a ward. Article 109 applies to a plaint for setting aside the father's alienation of ancestral property governed by Mitakshara law. As per Article 109, the suit must be filed within 12 years when the alienee takes possession of the property. When we apply Article 109, the suit would be barred by limitation as it was filed in 1994, nearly 24 years after the relinquishment deed (Ext. P-2) was executed to the fourth defendant in favour of Patel Mallegowda branch and nearly 21 years after Plaintiff 3 attained majority in 1973. For the same reason, the suit would be barred under Articles 58 and 59 of the Limitation Act as it had been filed post three years from the date the right to sue first accrued as per Article 58 and when the facts entitling the plaintiffs to have the instrument or decree cancelled or set aside or the contract rescinded first came to the knowledge of the plaintiffs as per Article 59. The High Court, in our opinion, rightly rejected the specious and untrue plea of the plaintiffs that till two months before the filing of the suit, they were unaware and did not know about execution of the relinquishment deed by their elder brother, the fourth defendant.

39. For the aforesaid reasons we dismiss this appeal, and uphold the judgment² of the High Court dismissing the suit as barred by limitation. Decree will be drawn up accordingly. There would be no order as to costs.

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² *M.S. Susheelamma v. M.R. Shivakumar*, 2008 SCC OnLine Kar 548